

prevail in a New York State Supreme Court divorce action in a bitter divorce dispute over custody and visitation rights with respect to the three minor Herman children.

2. As a direct and proximate result of this conspiracy, JOEL was falsely arrested and imprisoned on three separate occasions on May, 26, 2014 and May 30, 2014, respectively, and maliciously prosecuted on false charges in two separate criminal cases rooted in these false arrests and brought against him the Criminal Court of the City of New York, Kings County, under Docket Nos. 2014KN038594 and 2014KN040353, respectively. None of the above arrests, imprisonment or prosecutions were based on any probable cause, but were done with actual malice and with the sole intent to harm JOEL HERMAN, for the express purpose stated in the preceding paragraph.

3. These two criminal cases, commenced on May 27, 2014 and May 31, 2014, respectively, were ultimately terminated prior to trial and dismissed on the merits in Plaintiff's favor, upon the request and/or recommendation of the District Attorney's Office. The first case, Case # 2014KN038594, was dismissed in part on September 3, 2014 and disposed of in full on November 24, 2014 and the second case, Case # 2014KN040353, was dismissed in full on October 2, 2014.

4. All of the individual Defendants, while acting individually, jointly, and/or in conspiracy with each other, under color of law and within the scope of their employment by the Defendant CITY OF NEW YORK or as private individuals acting in effect as state actors, deprived Plaintiff of his constitutional rights secured by the United States Constitution, including its First, Fourth and Fourteenth Amendments as described below.

5. Such deprivation effectuated by the individual Defendants, was aided and enhanced by the defective policies, customs, practices, usages and misconduct of the

NYPD 90th police precinct, as agent of the Defendant CITY OF NEW YORK, which failed to properly train and supervise the individual Defendants or to establish proper policies, procedures, practices, and customs of the 90th Police Precinct of the NYPD that would prevent or expose such false arrests and the initiation and continuation of malicious prosecutions of non-existent misdemeanor and felony crimes, motivated by illicit and corrupt purposes that resulted from conspiratorial conduct between police officials and private individuals, to help Plaintiff's wife gain advantage in a custody dispute in a divorce action.

6. The deprivation by the Defendants of Plaintiff's constitutional rights secured by the United States Constitution, including its First, Fourth and Fourteenth Amendments as described below, resulted in economic and severe emotional harm to Plaintiff, irreparable harm to his reputation, and the expenditure of tens of thousands of dollars in legal fees to defend against criminal prosecutions that the Defendants knew were baseless. Because the actions of all individual Defendants were intentional, malicious, and in bad faith, they give rise to punitive damages as to all Defendants with the exception of the Defendant CITY OF NEW YORK.

7. Plaintiff therefore seeks redress in this action for those injuries by way of compensatory and punitive damages, including costs and attorney's fees, pursuant to the Civil Rights Act of 1871, 42 U.S.C. §§ 1983 and 1985(3), for his False Arrest, False Imprisonment, Malicious Prosecution, Unlawful Search and Seizure, and Violation of Due Process and Equal Protection Clauses and Conspiracy arising from the Defendants' violations of his rights secured by the United States Constitution, including its First, Fourth and Fourteenth Amendments, and by the Constitution and laws of the State of New York

for the same acts of false arrest and imprisonment, malicious prosecution, unreasonable search and seizure and civil conspiracy.

JURISDICTION AND VENUE

8. This Court has original jurisdiction over Plaintiff's constitutional and federal law claims pursuant to 28 U.S.C. § 1331 and 28 U.S.C. § 1343 in that this action is brought pursuant to 42 U.S.C. §§ 1983, 1985(3) and 1988, to redress the deprivation under color of law of Plaintiff's rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

9. This Court has supplemental jurisdiction pursuant to 28 U.S.C. § 1367 of all pendent state law claims that are so related to the claims within the Court's original jurisdiction that they form part of the same case or controversy under Article III of the United States Constitution.

10. Venue is proper in in the Eastern District of New York pursuant to 28 U.S.C. § 1391 in that all the Defendants are subject to personal jurisdiction within the Eastern District of New York and the events that give rise to the claims asserted herein occurred within its boundaries.

JURY TRIAL DEMANDED

11. Plaintiff, JOEL HERMAN, demands a trial by jury pursuant to Federal Rules of Civil Procedure 38(b) and (c) on each and every one of his claims as pleaded herein, and on all counterclaims and third party claims asserted in this action.

THE PARTIES & THEIR RELATIONSHIP TO THIS ACTION

12. At all times relevant to this action, Plaintiff JOEL HERMAN was and is a natural person and resident of Kings County, New York. He is the husband of Defendant

ROCHEL HERMAN, and the defendant in a pending divorce action brought by ROCHEL HERMAN in New York State Supreme Court, Kings County, Index No. 58486/13.

13. Defendant CITY OF NEW YORK is and was at all times relevant herein a municipal corporation duly incorporated under the laws of the State of New York pursuant to § 431 of its Charter. The CITY OF NEW YORK is authorized by law to maintain a police department (the “NYPD”), a municipal agency of the CITY OF NEW YORK with multiple police precincts including the NYPD 90th Police Precinct, which acts for it in the area of law enforcement, and for whose acts the CITY OF NEW YORK is ultimately responsible.

14. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the policies, procedures, and practices implemented through its various agencies, departments, and employees, and for injury occasioned thereby. It is the public employer of the police officers, detectives, supervisory and administrative personnel within the NYPD, which hired, supervised, trained, retained and controlled the police officers, detectives and supervisory personnel in the 90th police precinct of the NYPD who are named as individual Defendants herein and who have enforced the State laws at issue against Plaintiff.

15. Defendant, KENNETH M. WIEBER ("WIEBER"), shield number 1755, is, upon information and belief, a citizen and resident of Kings County, New York. At all times material to the allegations in this Complaint, WEIBER acted in his capacity as a Police Detective of the 90 PDU (Police Detective Unit) Command, within the NYPD 90th Police Precinct, employed by the CITY OF NEW YORK, and under color of state law, to

wit, under the laws, statutes, ordinances, regulations, policies, customs and usage of the State of New York, CITY OF NEW YORK and the NYPD.

16. Defendant WIEBER was on duty on the evenings of May 26 and May 30, 2014 and was instrumental in the first, second third false arrests of Plaintiff and in the subsequent initiation and continuation of the two malicious prosecutions described in of Plaintiff until their dismissal on motion of the district attorney. WIEBER is sued in his individual and official capacities.

17. Defendant Police Officer Anthony D'Alto ("D'ALTO"), shield number 9117, was at all times material to the allegations in this Complaint, acting in his capacity as a duly appointed NYPD Police Officer assigned to the 90th NYPD police precinct, employed by the CITY OF NEW YORK and was acting under color of state law. D'ALTO responded to JOEL's 911 call on the night of April 21, 2014, conspired with Defendant WIEBER to falsely back him up as to the planned false arrest JOEL on May 26, 2014 for fraudulent charges stemming from the above 911 call and then provided the District Attorney's office with a deliberately perjurious sworn statement, or deposition, in support of the false complaint filed by defendant WIEBER in connection with charges related to the May 26, 2014 arrest of JOEL. He is sued in his individual and official capacities.

18. Defendant, Police Detective JOHN DOE # 1 ("DOE # 1"), was at all times material to the allegations in this Complaint, acting in his capacity as a Police Detective of the 90th police precinct of the NYPD employed by the CITY OF NEW YORK and was acting under color of state law. His true name is presently unknown to plaintiff JOEL and is therefore sued by such fictitious name; plaintiff intends to amend this Complaint to

show the true name of this defendant when the same has been ascertained. DOE # 1 participated in the false arrest of JOEL on May 26, 2014 and was liable for the harm caused to the Plaintiff thereby. DOE # 1 is sued in his individual and official capacities.

19. Defendant JOHN DOE # 2 (“DOE # 2”) was at all times material to the allegations in this Complaint, acting in his capacity as a Police Officer of the 90th police precinct of the NYPD holding the rank of sergeant, employed by the CITY OF NEW YORK and acting under color of state law. Upon information and belief, Defendant, JOHN DOE # 2, was at all relevant times a duly appointed Sergeant for the detective squad within the 90th police precinct of the NYPD and as such was responsible for the implementation and promulgation of official policy over his subordinates; was the direct supervisor of the Defendants Detectives WIEBER and DOE #1; participated in and approved the arrest and prosecution of the Plaintiff and was deliberately indifferent to the need for adequate training and supervision for his subordinates, the failure of which caused constitutional violations upon the citizenry in general and Plaintiff in particular. His true name is presently unknown to plaintiff JOEL and is therefore sued by such fictitious name; plaintiff intends to amend this Complaint to show the true name of this defendant when the same has been ascertained. DOE # 2 is sued in his individual and official capacities.

20. Defendant, JOHN DOE # 3 (“DOE # 3”), was at all times material to the allegations in this Complaint, acting in his capacity as a Police Officer of the 90th police precinct of the NYPD, employed by the CITY OF NEW YORK and acting under color of state law. Upon information and belief, Defendant DOE # 3 was at all relevant times holding the rank of Sergeant within the 90th police precinct of the NYPD and served as

the desk sergeant at the 90th precinct on the night of May 26, 2014 and witnessed, but exhibited complete and deliberate indifference to Defendant Detective WIEBER's unlawfully seizing from Plaintiff's jacket pocket a closed wallet during a purported inventory search, while in handcuffs, and then improperly placing same in his pocket for an illegal search which resulted in a second false arrest of Plaintiff later that night and additional false charges the following day. His true name is presently unknown to plaintiff JOEL and is therefore sued by such fictitious name; plaintiff intends to amend this Complaint to show the true name of this defendant when the same has been ascertained. DOE # 3 is sued in his individual and official capacities as a result of his failure to properly supervise and report his observation of unlawful activity by Defendant WIEBER, which caused additional constitutional violations committed upon Plaintiff.

21. Defendants, Police Officers JOHN and JANE DOES ## 4-6 ("DOES 4-6"), were at all times material to the allegations in this Complaint, acting in their capacities as duly appointed NYPD Police Officers assigned to the 90th NYPD police precinct, employed by the CITY OF NEW YORK and acting under color of state law. DOES ## 4-6 were on duty on the evening of May 26, 2014 and participated in the first false arrest of Plaintiff and were liable for the harm caused to the Plaintiff. DOES ## 4-6 are presently unknown to plaintiff JOEL HERMAN by their true names and these defendants are therefore sued by such fictitious names; plaintiff intends to amend this Complaint to show the true names of these defendants when the same have been ascertained. DOES ## 4-6 are sued in their individual and official capacities.

22. Defendants Police Officers JOHN AND JANE DOES ## 7-10 ("DOES ## 7-10") were at all times material to the allegations in this Complaint, acting in their

capacities as duly appointed NYPD Police Officers assigned to the 90th NYPD police precinct, employed by the CITY OF NEW YORK, and acting under color of state law. Defendants JOHN DOES ## 4-10 were on duty with the NYPD on the evening of May 30, 2014, participated in the third false arrest of Plaintiff and were liable for the harm caused to the Plaintiff. DOES ## 7-10 are presently unknown to plaintiff JOEL by their true names and these defendants are therefore sued by such fictitious names; plaintiff intends to amend this Complaint to show the true names of these defendants when the same have been ascertained. DOES ## 7-10 are sued in their individual and official capacities.

23. At all times relevant herein, in engaging in the actions alleged in this Complaint, the individual Defendants were acting under color of the laws, statutes, ordinances, regulations, policies, customs and usage of the State of New York, CITY OF NEW YORK and the NYPD, in the course and scope of their duties and functions as officers, agents, servants, and employees of Defendant CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by the CITY OF NEW YORK and the NYPD, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

24. Defendant, ROCHEL HERMAN (“ROCHEL”), is the wife of plaintiff JOEL, the plaintiff in a pending divorce action brought by her against JOEL New York State Supreme Court, Kings County, Index No. 58486/13 and the mother of three minor Herman children. Together with defendants, WIEBER, GREENBERG, MANDEL, TEITELBAUM, EISNER & YACOOB, she has actively conspired to, and did

in fact, lodge numerous false, fraudulent, highly improper and harassing 911 calls and false complaints against JOEL, and executed false sworn statements, or depositions, in order to help effectuate and perpetuate the false arrests and malicious prosecutions noted above by bringing, or causing to be brought, and perpetuating false and fraudulent criminal charges against her husband for the sole purpose of gaining a substantial advantage in her custody dispute with JOEL and cutting off or substantially impairing all of his court-ordered access to the Herman children in the Supreme Court, Kings County divorce action.

25. Defendant, ARON GREENBERG (“GREENBERG”), is a citizen and resident of Kings County, New York, and is a major supporter and financial backer of ROCHEL. Together with WIEBER and the other named private individual defendants, has actively conspired to, and did in fact, provide false and fraudulent sworn affidavits about bringing two of three Herman children to JOEL’s residence on the last day of Passover, on April 22, 2014, and telling him about the whereabouts of the third son, when in truth and in fact he did neither, resulting in false arrests of JOEL on May 26, 2014 and a malicious prosecution which resulted therefrom, in both Criminal Court and in the Supreme Court divorce action.

26. Defendant, ARON MANDEL (“MANDEL”), is a citizen and resident of Kings County, New York, and is a major supporter and financial backer of ROCHEL. MANDEL has an administrative position in the school in which the Herman children attend. Upon information and belief, MANDEL has engaged in similar conduct as GREENBERG, as described in the preceding paragraph, in connection with the April 22, 2014 trip to JOEL’s residence to bring the Herman children there except he did not submit any false affidavit now known to plaintiff.

27. Defendant, JOEL TEITELBAUM (“TEITELBAUM”), is a citizen and resident of Kings County, New York, and a divorce client of Defendant YACOOB, an attorney at law, who also represents ROCHEL in her divorce action against JOEL. TEITELBAUM’S girlfriend is Breindy Rosenberg (Breindy”), a troubled young lady now addicted to alcohol and drugs, and a former friend of JOEL whom he tried to help in her divorce case. TEITELBAUM sat in a car across the pointe Plaza Hotel the evening of May 26, 2014 when JOEL was falsely arrested by WIEBER and DOES 2 & 4-6, running a video, preparing to give false testimony for WIEBER and in communication with WIEBER sitting about a block away. Upon information and belief, YACOOB paid TEITELBAUM to talk Brenda into giving false evidence against JOEL to WIEBER while under the influence of alcohol and to help JOEL be charged by WIEBER with false identity theft and larceny charges, all of which WIEBER knew to be false, manufactured and/or unreliable, and which were ultimately dismissed on the merits. YACOOB also had Brenda sign a completely false affidavit which he purportedly notarized and used in the Supreme Court, Kings County divorce action.

28. Defendant, LEON EISNER (“EISNER”), is a paid adviser to ROCHEL in connection with her divorce action. Defendants, EISNER & TEITELBAUM, sat in a car across the Pointe Plaza Hotel, 2 Franklin Ave., Williamsburg, New York the evening of May 26, 2014 when JOEL was falsely arrested by WIEBER and DOES 2 & 4-6, running a video, preparing to give false testimony for WIEBER and in communication with WIEBER sitting about a block away. WIEBER then filed a perjurious and entirely false complaint against JOEL claiming WIEBER had personally observed him driving the Herman children to the hotel exchange point in a reckless manner, without seat belts, and

they jumped out wildly from the car upon reaching the hotel parking lot. Hotel surveillance videos show all of Wieber's charges to be contrived and shockingly false and fraudulent. Upon information and belief, EISNER and TEITELBAUM actively conspired with ROCHEL & WIEBER for many weeks to have JOEL arrested on trumped up charges, jailed and criminally charged, knowing all along that the charges were unfounded and false.

29. Defendant, JOEL NAIM YACOOB ("YACOOB"), is a New York divorce attorney representing ROCHEL as plaintiff in the state divorce action noted above, as well as Teitelbaum. On or about June 6, 2014, YACOOB appeared in criminal court and told Assistant District Attorney Rachel Nash not to drop the second case which was based on false charges of custodial interference and criminal contempt brought by ROCHEL and Wieber against JOEL for picking up his son for visitation for the weekend beginning May 30, 2014, purportedly in violation of an Order of Protection dated May 27, 2014, which restricted JOEL's access to his three sons *but made it subject to* Family and Supreme Court Orders.

30. In fact, as WIEBER, YACOOB and ROCHEL well knew, under the terms of a Supreme Court Order dated March 20, 2014, the weekend of May 27, 2014, was the alternate weekend designated by that Order for JOEL to have visitation with his children and that ROCHEL had the children for the prior weekend, and they knowingly and intentionally filed false charges in order to cause JOEL to be arrested and incarcerated, and in order to derive an advantage in their case pending in the Supreme Court.

31.

NOTICE OF CLAIM

32. Plaintiff, in furtherance of his supplemental state causes of action set forth below, filed a proper and timely notice of claim against the CITY OF NEW YORK in compliance with General Municipal Law Section 50, by delivering a copy of the notice to the person designated by law as a person to whom such claims may be served, setting forth the facts underlying Plaintiff's claim.

33. The Notice of Claim set out the nature of the claims asserted herein, the time when and the place where and manner by which such claims arose, and the damages and injuries claimed to have been sustained by Plaintiff. Plaintiff is in the process of seeking leave of the Supreme Court, Kings County for leave to file a late notice of claim *nunc pro tunc*, with respect to the state false arrest and imprisonment claims, under N.Y. G.M.L. § 50-E, and this claim by him is not therefore time-barred.

34. The City assigned a claim number to Plaintiff's claim, and Plaintiff was subjected to an examination pursuant to N.Y. Gen. Mun. L. Sec. 50-h on April 22, 2014. To date, no answer has been received by Plaintiff and no compensation has been offered by Defendant CITY OF NEW YORK in response to this claim, which has neglected and failed to adjust the claims within the statutory time period.

35. This action has been commenced within one year and ninety days of the date of occurrence of the events giving rise to this Complaint.

FACTS COMMON TO ALL CLAIMS

36. Prior to their separation in or about February 2010, Plaintiff, JOEL, and his estranged wife, ROCHEL, were a Hassidic Jewish couple living in the Williamsburg

section of Brooklyn, New York. Since their separation, they have been embroiled for more than five years in an ongoing high conflict custody/visitation dispute with respect to their three minor sons.

37. After litigating about three years in Family Court, the battleground moved to Supreme Court in late 2013 in the form of a divorce action commenced by ROCHEL.

38. At the time, the New York City Administration for Children's Services ("ACS") began to conduct an active investigation into ROCHEL's ability to provide adequate care to the three Herman children. To stop the ongoing ACS investigation, to obtain permanent legal custody of the children and to restrict and greatly diminish the extensive and liberal terms of JOEL's access to his children previously ordered by the Family Court on October 24, 2013, subsequently modified in certain respects by Supreme Court orders dated March 20, 2014 and April 10, 2014, respectively, ROCHEL and one of her prime community supporters, GREENBERG, successfully enlisted the help of WIEBER, who had already testified on ROCHEL's behalf in Family Court, purportedly as "noble cause corruption."

39. To accomplish these ends, ROCHEL, GREENBERG and WIEBER, with the subsequent assistance of D'ALTO and other officers and supervisors of the NYPD 90th Precinct, names not currently known, having little regard for the New York constitution and or laws they swore to uphold, corruptly devised a scheme to instigate a series of false arrests and malicious criminal prosecutions against JOEL, based on manufactured crimes they knew he had never committed.

40. As part of this scheme, patently false information and perjurious sworn statements and supporting depositions, were given to the Kings County District

Attorney's Office in bad faith by WIEBER, D'ALTO, ROCHEL and GREENBERG, in a calculated effort to have JOEL falsely arrested and maliciously prosecuted on trumped up charges. WIEBER also deliberately filed a false child abuse report with ACS the very same day to bring the active ACS investigation of ROCHEL to a grinding halt.

41. There was a complete absence of probable cause for the false arrests and imprisonment of JOEL and for the commencement of criminal proceedings against him. Rather, the false arrests and malicious prosecution were fueled entirely by actual malice on the part of WIEBER & D'ALTO to harm JOEL, primarily for the purposes stated above, and not for bringing a true offender to justice.

42. Indeed, immediately after the criminal cases alleging, *inter alia*, family offenses, were commenced, and temporary orders of protection granted for the Herman children, ROCHEL and her attorney YACOOB obtained parallel temporary orders of protection in SUPREME COURT to stop JOEL HERMAN from seeing his children in the liberal manner and under the circumstances previously granted by the FAMILY COURT, as modified by the SUPREME COURT, but only limited and highly restricted supervised visits.

43. As explained in more detail below, ultimately, all these false and malicious charges were dismissed by the New York City Criminal Court, on the consent of the Kings County District Attorney, as lacking any merit, based on the District Attorney's review of footage from hotel and other building surveillance cameras that captured the arrests and the underlying events on live video, supplemented by e-mails and text messages to and from JOEL by a third party, April 22, 2014 telephone records, the

911 tape, and certified prior Family Court and Supreme Court Orders regarding custody and visitation issues in the Herman matter.

A. The Two False Arrests of JOEL HERMAN on May 26, 2014 and His Malicious Prosecution Arising Therefrom in NYC Criminal Court, Kings County, *People v Herman*, Docket No. 1-2014KN 038594-Filed May 27, 2014 and Dismissed on the Merits on September 3, 2014 and November 24, 2014

44. On Monday, May 26, 2014, at approximately 7:10 P.M., JOEL HERMAN was arrested (Arrest # K14646926) by WIEBER, in the lobby of the Point Plaza Hotel at 2 Franklin Ave., Brooklyn, New York, based on the underlying facts and charges contained in TPO-1 of the accusatory instrument issued the following day. *See* Par. 10 below. The hotel was an established exchange point where JOEL had just returned his three children to ROCHEL, after the completion of their Monday evening visit at the father's nearby residence. JOEL was rearrested again, while in custody later that night, about 1:30 A.M., in an undocketed arrest (Arrest # K14647007) involving being fingerprinted and booked again, based on the charges contained in TPO-2 and TPO-3 of the accusatory instrument issued the following day.

45. The next day, JOEL was charged in a felony complaint dated May 27, 2014, Docket No. 1-2014KN 038594, comprising one felony and eight misdemeanors, broken down into three categories for a total of thirteen counts, and released from jail upon his own recognizance. The criminal allegations were as follows:

(TPO-1) On April 22, 2014, at approximately 10:30 PM, Joel Herman made a purportedly false 911 call reporting a missing child-one of his three minor children that was inexplicably and without notification not brought to his residence for visitation on the last day of the Passover

Jewish holiday along with the other two children, thereby committing the offenses of falsely reporting an incident in the third degree, under PL 240.50(2) and PL 240.50(3)(A) (2 counts);

(TPO-2) On May 26, 2014 at approximately 07:10 PM, at 2 Franklin Avenue, Brooklyn, New York, Joel Herman committed the additional offense(s) of criminal possession of stolen property in the fourth degree; PL 165.45(2); criminal possession of stolen property in the fifth degree, PL 165.40; criminal impersonation in the second degree, PL 190.25(4); and identity theft, PL 190.78(1).

(TPO-3) On May 26, 2014 at approximately 07:10 PM, at 2 Franklin Avenue, Brooklyn, New York, while driving his three children into the Point Plaza Hotel Parking lot, Wieber purportedly observed Joel Herman committing the offense(s) of (i) driving on a sidewalk, VTL 1225-a; (ii) operating a vehicle without safety belts on each of the three Herman children, VTL 1229-c (1) (3 counts); and endangering the welfare of each of the 3 Herman children, PL 260.10(1) (3 counts).

46. WIEBER also maliciously filed with ACS a false Report of Suspected Child Abuse & Mistreatment dated May 27, 2014 regarding the charges contained in TPO-3 which states:

Arresting officer observed the father of the children driving his vehicle with the children inside. None of the children were in child seats or were wearing seatbelts. The father drove his vehicle on the sidewalk directly i/f/o 2 Franklin Ave. in Brooklyn. He then erratically placed vehicle in reverse and drove backward on the sidewalk in an erratic way causing pedestrians to hurriedly move out of his way. Father then placed vehicle in drive and drove forward, again on the sidewalk, and quickly made a sharp right turn into a driveway where the children immediately opened the car door and exited the vehicle.

The Sept. 3, 2014 Dismissal of All Charges Contained in TPOs 2 & 3

47. On Sept. 3, 2013, at the next scheduled court appearance date, all the charges contained in TPO-2 and TPO-3 sections of the accusatory instrument (but not the first two charges for purportedly making a false 911 call contained in TPO-1), were dismissed by the criminal court, at the request of the Assistant District Attorney, who stated:

THE COURT: What is the reason for dismissing the two TPOs?

MS. ROWE: [TPO-2]-The people received video footage, the defendant's entrance in dropping off area was blocked. The defendant drove in a careful and reasonable manner to obtain access to drop off location. The third TPO [TPO-3] -the defendant and Complaining Witness are known to each other and defendant and Complaining Witness had access to personal-

People are serving and filing three supporting depositions. Announcing Ready. And only on the remaining TPO, AP-3.

THE COURT: So the only surviving TPO will be

TPO-1. MS. ROWE: Yes.

48. Notably, WIEBER's sworn allegations in the factual portion of the Felony Complaint (TPO-3) and in the aforementioned child abuse report filed with ACS the same day, to the effect that that he had *personally observed* JOEL driving the three Herman children in an erratic and reckless manner, without seat belts, onto the sidewalk in front of the Point Plaza Hotel, were deliberately false and maliciously fabricated-the only conclusion that can be reached ***upon viewing the hotel surveillance camera footage*** which, as noted by the District Attorney, shows that the exact opposite is true.

49. As to the TPO-2 charges of criminal possession of stolen property in the fourth degree, criminal possession of stolen property in the fifth degree, criminal impersonation in the second degree and identity theft, these charges were based on two debit cards of a third party, Breindy Rosenberg, and an internet purchase receipt of \$93.49 charged to one such card, found in JOEL's possession at the time of his arrest. However, Breindy Rosenberg had told WIEBER that very same night, at the police station, that the expenditure and the cards being held by JOEL were authorized, but WIEBER, with the help of her boyfriend, had pressured her to sign a fraudulent and false statement implicating him in a crime. Subsequently, upon review of numerous e-mails

and texts between JOEL and Breindy Rosenberg (“Rosenberg”), the Assistant District Attorney concluded that Breindy Rosenberg and JOEL were “known to each other” and that JOEL had authorized access to her personal finances to help her pay her bills and to charge and hold her two debit cards.

50. Not only did WIEBER pressure Rosenberg to lie at the police precinct that night and sign a false statement to buttress the false charges contained in TPO-2 of the accusatory instrument, but the debit cards and receipt which purportedly formed the basis for these charges were unlawfully seized by WEIBER from JOEL’s pockets at the police station, in front of another supervising officer, name unknown, who said nothing, after he had been arrested at the Pointe Plaza hotel and driven to the police station in handcuffs. The debit cards were seized from a closed wallet without a search warrant, in violation of the New York Constitution and clearly established jurisprudence of the New York Court of Appeals.

The November 24, 2014 Dismissal Of The Purported False 911 Call Charges In TPO 1

51. The remaining charges contained in TPO-1 which allege that Joel Herman placed a false 911 call on April 22, 2014, at approximately 10:30 PM, were dismissed by the criminal court on November 24, 2014, upon consent of the District Attorney.

52. The factual portion of the Felony Complaint alleges that:

Deponent is informed by Rochel Herman that just prior to the first above time and place, the informant was in the park with Arron Herman and while at same location the child sustained an injury on the playground for which informant brought said child to a doctor’s office. Deponent is informed by Ari Greenberg that informant accompanied two of the three children to the above stated location for said children to have visitation with the defendant, and informant stated to defendant in sum and substance that Aaron Herman, the above stated child, was not present for said visit with the defendant ***because said child was with***

Rochel Herman at the doctor's office following an injury sustained at the park.

Deponent is informed by the official records of the New York City Police Department 911 Transmission, kept in the regular course of business that, at the first above time and place, the defendant telephoned 911 reporting an emergency in that defendant stated in sum and substance that defendant's four year old son Aaron Herman was missing.

Deponent is further informed by Police Officer Dalto, Shield No 9117 of 90 Command, that at the first above time and place, the informant responded to Defendant's emergency telephone call and that defendant repeated again to the informant that defendant's son, Aaron Herman was missing, whereupon the informant began a search for said child.

Deponent is further informed by the informant that, at the first above time and place, the defendant claimed ***for approximately thirty minutes*** that defendant does not know the address of Rochel Herman and Arron Herman, ***thereby impeding informant's investigation for the missing child***, and upon finally learning Rochel Herman's address, informant observed that said child, Arron Herman, who lives with Rochel Herman, was at home in bed sleeping. (Emphasis supplied).

53. Three supporting depositions were subsequently served and filed by the District Attorney: (i) ROCHEL's deposition dated August 13, 2014, (ii) GREENBERG's deposition dated August 11, 2014 and (iii) D'ALTO's deposition dated June 29, 2014. Each of these verified depositions states that "the facts in the Instrument stated to be on information furnished by me are true to my personal knowledge."

54. There is no dispute that (1) Chaim and Eliezer Herman were brought to JOEL's residence on the last day of the Passover holiday, April 22, 2014, at about 6:00 P.M., for overnight visitation purposes, and that (2) Joel Herman made a 911 call later that evening, after the conclusion of the Passover holiday, at about 10:30 P.M., regarding his third son, Aron, as a result of his not being brought for visitation with his brothers at 6:00 P.M. The accusatory instrument alleged, however, that the 911 call was "false," and not that of a genuinely concerned father who was clueless as to what happened to his missing, possibly injured son in

the midst of a heated custody/visitation dispute with his estranged wife, because (1) “[Ari Greenberg] *stated to defendant in sum and substance that Aaron Herman... was not present for said visit with the defendant because said child was with Rochel Herman at the doctor’s office following an injury sustained at the park*” and because, (2) Police Officer D’Alto swore that “the defendant claimed *for approximately thirty minutes* that defendant does not know the address of Rochel Herman and Arron Herman, *thereby impeding informant’s investigation for the missing child.*”

55. However, timed video surveillance footage obtained from two different sites and JOEL’s cellular phone records for April 22, 2014 demonstrate beyond any doubt that both GREENBERG’s and D’ALTO’s sworn statements were deliberately false and malicious.

False Statement # 1-The Allegation By Det. Wieber That Ari Greenberg Brought Two Herman Children To The Residence Of Joel Herman On April 22, 2014, At About 6:00 P.M., And Notified Him That Aaron Herman Was Not Present Because He Had Been Injured At The Park Or Was At The Doctor’s Office Is Entirely False And Maliciously Fabricated.

56. This false allegation is not only attributed to inthe accusatory instrument but elaborated upon in GREENBERG’s separate Affidavit dated July 28, 2014, which was submitted to the Supreme Court in the divorce case. There, GREENBERG states that “on a weekly basis, since the inception of the litigation between Ms. Rachel Herman and Mr. Joel Herman, [he has] assisted in transporting the parties' children to and from pickup and drop offs” and that MANDEL is “another well-established transporter for the Herman children.” GREENBERG further avers that “[o]n April 22, 2014 myself [and] Mr. Aron Mandel...delivered the Herman children named Chaim and Eliezer to Mr. Herman,” and that “[w]e notified Mr. Herman of a playground

incident which had occurred earlier in the day and was the *reason for Aron Herman not being produced.*”

57. Likewise, in a separate Domestic Incident Report (“DIR”) dated **May 5, 2014**, Wieber elaborates on the same story, and without a shred of evidence, adds his own biased commentary as follows:

There have been ongoing issues between Joel Herman & his ex-wife Rochel Herman for years. Mr. Herman has been psychologically abusing Rochel for years. He & his family have made false accusations about her. On 4/22/14, Rochel took their son Aaron to the park where he got hurt. She took Aaron home and made an appointment with the pediatrician. Aaron was due to visit with his father later on that day along with his 2 brothers. She did not sent Aaron because she wanted him seen Doctor. The person who transports the children to the father is Mr. Aaron Mandel ***She told Mr. Mandel to inform Joel of what happened which he did when he dropped off Chaim & Eliezer.***

Later on that evening, at approximately [10:30 P.M.], Joel Herman called 911 and reported his son Aaron missing. He reported he last saw Aaron the day before and that **today (4/22/14) a “stranger” dropped off 2 of his children and the youngest was missing. He communicated to the police that that he was extremely concerned about Aaron’s whereabouts.** Officers from the 90th precinct went to Rochel Herman’s residence at approx. [11:00 P.M.] and questioned her about Aaron. She explained to the officers what had occurred and the officers examined Aaron-saw that everything was fine and then left. **Joel Herman made a false report to the police. This an example of how he uses the system to attack Rochel. (Emphasis supplied).**

58. However, surveillance camera footage shows that GREENBERG never dropped off two of the three Herman sons at JOEL’s residence on April 22, 2014, and could not have possibly advised him of Aron’s absence and why that happened. Instead, GREENBERG and MANDEL studiously avoided having any contact with JOEL, although they did accompany MANDEL’s 14 year old son, as he drove the kids in a double baby stroller, on a walk from ROCHEL’s residence at 32 Walton St. to the apt. building residence of Joel Herman, at 155 Ross St(due to the holiday in which riding in

an automobile is prohibited), as they waited at the corner while MANDEL's 14 year old son, whose identity was then unknown to JOEL, dropped off the two kids in less than a minute, without identifying himself or advising why Aaron was not with his brothers.

59. Only after the 14 year old left JOEL's apt. building with an empty baby carriage did GREENBERG and MANDEL meet up with MANDEL's son on the way back to ROCHEL's residence. Surveillance camera footage conclusively shows that neither of these two persons ever came to the HERMAN building, and could not possibly have advised JOEL of the condition and whereabouts of his missing son Aaron. And of course, GREENBERG did not call JOEL or leave a message with him during the Passover holiday.

60. To the contrary, GREENBERG's studious avoidance of JOEL that day was apparently calculated to avoid his having any knowledge of the injuries sustained in the park by Aaron.

False Statement # 2-Police Officer D'Alto's Allegation that "the Defendant Claimed For Approximately Thirty Minutes that Defendant Does Not Know the Address of Rochel Herman and Arron Herman, Thereby Impeding Informant's Investigation for the Missing Child" Is Demonstrably False and Contradicted by Surveillance Camera Footage

61. Equally proven baseless by surveillance camera footage and telephone records of JOEL's April 22, 2014 cellular phone is D'ALTO's sworn allegation that "the defendant claimed for approximately thirty minutes that defendant does not know the address of ROCHEL and Aaron Herman, thereby impeding Informant's investigation for the missing child."

62. In fact, pictures taken from footage of surveillance cameras show two police officers arriving in response to the 911 call at about 10:38 P.M. After speaking to

Joel Herman for only about three minutes-*not 30 Minutes as claimed by Officer D'Alto*- Joel Herman is seen dialing his cellphone to Mr. Klein, ROCHEL's father, first at 10:41 & then again 10:42 P.M., respectively. Each time he handed the phone to D'ALTO, who spoke to Mr. Klein about 10 minutes until about 10:51 P.M. Both phone calls to Mr. Klein are also reflected in the cellular phone co. records.

63. According to JOEL, he gave ROCHEL's address to D'ALTO immediately but told him that he had no phone number to reach her and that he did not know if the missing child was NOW at her residence. Instead, he told D'ALTO that only her father, Mr. Klein, would know. That is why he dialed Mr. Klein's number on his cellular phone for D'ALTO. Mr. Klein hung up at first but changed his mind after he was told D'ALTO wanted to speak to him.

64. Corroborating these statements, surveillance camera footage shows avisibly frustrated D'ALTO, wagging his fingers at an apparently uncooperative Mr. Klein, who left JOEL's apartment immediately thereafter at 10:51 P.M. from where he went straight to ROCHEL's residence.

65. Finally, according to Joel Herman, he learned from the other two very young children ages 5-6 that Aaron fell in the park and badly injured himself, but were unable to furnish details about his condition or his whereabouts. Further, JOEL had no contact person on ROCHEL's side or even a cellphone number to call on an emergency basis. When no one from ROCHEL's side called for about an hour after the end of the Passover holiday to advise as to Aaron's condition or where-about, JOEL panicked and called the 90th police precinct. At their suggestion, he then called 911 several minutes later. In fact, the telephone records and the surveillance camera footage confirm JOEL's

claim that he first called the 90th Police Precinct on 4-22-14, at 10:18 P.M., and then, at their suggestion, called “911” at 10:22 P.M. Under these circumstances, the District Attorney concluded that there was no evidence to support the allegation that the “911” call made by JOEL the night of April 22, 2014 was anything but genuine.

B. The Third False Arrest of JOEL HERMAN on Friday, May 30, 2014 and His Second Malicious Prosecution Arising Therefrom in NYC Criminal Court, Kings County, *People v Herman*, Docket No. 1-2014KN 040353--Filed May 31, 2014 and Dismissed on the Merits on October 2, 2014.

66. At his first appearance in Part AP3 of the King County Criminal Court on May 27, 2014, in Case #1 discussed in Section A above, Docket No. 1-2014KN038594, the defendant JOEL was released on his own recognizance, but the AP3 Court issued a complete stay-away temporary order of protection (“T.O.P.”) pursuant to CPL § 530.12, as a result of the pending family offenses [endangering the welfare of a child, PL 260.10(1)) (3 Counts for 3 children)], which barred the defendant from having any contact with his estranged wife and their three minor children and from their home, school, business and place of employment.

67. Because of the pending orders issued in the divorce action in Supreme Court dealing with custody/visitation issues, as well as a prior order of the Family Court, and defense counsel’s specific request at arraignment, a combined typed/handwritten sentence was added and initialed by Judge Tully, which specifically made the T.O.P. subject to “SUPREME COURT OR FAMILY COURT ORDERS REGARDING CUSTODY AND VISITATION”. The orders themselves were not attached to the T.O.P.

68. In fact, a March 20, 2014 Supreme Court order had modified and superseded an earlier Family Court Order dated November 23, 2013 by providing for special interim Passover visits and by changing the subsequent alternate weekend

schedule to accommodate the effects of such Passover visits. Indeed, the March 20, 2014, interim Passover visitation order had set forth at par. 7, in relevant part, as follows: “Following the [2014] Passover holiday, the alternate weekend access schedule shall resume w/ [sic] the mother having the children [commencing] on [Friday] 4/25 ...” The alternate weekend access schedule through May 30, 2014, according to the superseding Supreme Court Order was therefore as follows:

- Weekend commencing April 25, 2014 – Rochel;
- Weekend commencing May 2, 2014 – Joel;
- Weekend commencing May 9, 2014 –Rochel;
- Weekend commencing May 16, 2014 –Joel;
- Weekend commencing May 23, 2014 –Rochel;
- Weekend commencing May 30, 2014 –Joel.

69. In accordance with that order, ROCHEL had the children for the weekend beginning on May 23, 2014. The following weekend commencing on Friday, May 30, 2014, JOEL picked up his son Aaron at yeshiva school (the other 2 children did not go to school that day) and took him to his residence for a full weekend stay over. Nevertheless, at about 5:50 P.M. that Friday, JOEL was falsely and deliberately arrested again at his residence, in the presence of his minor son Aaron, by the same WIEBER, and charged with Custodial Interference, Second Degree, PL 135.45(1), and Criminal Contempt, Second Degree, PL 215.50(3).

70. Against this background, it is clear that the factual portion of the resulting misdemeanor complaint sworn to by WIEBER, and the supporting deposition sworn to by ROCHEL on August 13, 2014, which studiously refer only to a Family Court order, without the subsequent Supreme Court Order referred to in the May 27, 2014 TOP, were deliberately false and misleading, and designed to have her husband falsely arrested and

charged, so as to further stop him from seeing his children in the liberal manner ordered in April 2014 by the Supreme Court and to obtain a permanent custody award.

71. The accusatory instrument states:

The deponent was informed by Rochel Herman that, at the above time and place, the defendant did pick up their child in common from school and bring the child in common to the defendant's residence without permission or authority. The deponent further states that the above-described conduct by the Defendant was in violation of a 5/27/2014 Order of Protection, issued by Judge Jane Tully under Docket No. 2014KN030594 in effect until 11/28/2014, and ordering the defendant to stay away from the home, school, business, and place of employment of the informant and the children in common. The deponent further states that the above described order of protection is marked subject to family court orders regarding visitation and the above-described conduct by the defendant was in violation of a 10/24/2013 Kings County Family Court Order of Protection issued by Judge Amanda White, granting the defendant visitation on alternate Fridays beginning on 10/25/2013.

The deponent is further informed by the informant that, the above time is not the defendant's weekend for visitation (darkened emphasis added).

72. Any doubt that WIEBER acted maliciously and deliberately in causing the commencement of a baseless criminal prosecution, is eradicated by the fact that an experienced criminal defense attorney, Richard Finkel Esq., of Meissner, Kleinberg & Finkel P.C., appeared on JOEL's behalf at the 90th Precinct on the evening of May 30, 2014, with copies of the applicable Family Court and superseding Supreme Court orders. Mr. Finkel sought to demonstrate to WIEBER and his supervisor, name unknown, that JOEL rightfully had visitation with the Herman children at his residence that weekend and was therefore wrongfully arrested and should be released forthwith. WIEBER and his supervisor both claimed that it was too late to do anything at that late hour because the prosecutor was gone, but did nothing to notify the prosecutor the following day before or after arraignment that the charges were baseless. In fact, WIEBER did nothing but collect

supporting depositions from D'ALTO, ROCHEL and GREENBERG to uphold the fraudulent charges and personally appeared before the District Attorney in late August 2014 to unsuccessfully stop the case from being dismissed.

The Oct. 2, 2014 Dismissal of the False Charges

73. On October 2, 2014, the Criminal Court dismissed the contempt and custodial interference charges on the merits and vacated the outstanding Criminal Court temporary order of protection. That the contempt and custodial interference charges were meritless was confirmed by the District Attorney on October 2, 2014, at which time the Criminal Court dismissed the charges, upon consent of the People:

Assistant District Attorney Farkas: I looked at the orders from [S]upreme Court [in the divorce action] and according to my calculation **this arrest should not have happened** It looks as though it was the defendant's weekend [to have access with the children]. In light of that I believe that docket should be dismissed. ...

The Court: That docket, 0353, is dismissed. The temporary order of protection is vacated.

74. In addition, there can be no question that ROCHEL knew she had the children the prior weekend beginning on Friday, May 23, 2014. Moreover, when WIEBER arrested JOEL the first time on Monday, May 26, 2014, while returning his children after an extended Monday afternoon visit at his residence, he had to have known that ROCHEL had the children that weekend under the terms of the very Family Court order he cites as the basis for the arrest, that provision was not modified by the subsequent Supreme Court order. Under these circumstances, it is clear that the false arrest, in front of his minor son, who was driven to the police station with his father in handcuffs, was calculated and deliberate and the subsequent malicious prosecution WIEBER instigated, to cause as much harm to JOEL, and for no legitimate purpose.

CLAIMS FOR RELIEF

FIRST COUNT

**VIOLATION OF 42 U.S.C. § 1983-
FALSE ARREST & IMPRISONMENT [ARRESTS 1 & 2]
AGAINST ALL DEFENDANTS**

75. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

76. Pursuant to the Fourth Amendment to the Federal Constitution, it is clearly established law that an arrest and/or imprisonment is unlawful when not supported by probable cause.

77. On or about May 26, 2013, WIEBER and JOHN DOES # 1 AND 4-6, acting under color of law within the meaning of 42 U.S.C. § 1983, and in concert with ROCHEL, GREENBERG, EISNER and TEITELBAUM acting as state actors, caused Plaintiff to be falsely arrested, detained and imprisoned without reasonable suspicion or probable cause, thereby depriving plaintiff of his right to be free from unlawful seizure under the Fourth Amendment to the Constitution of the United States, in violation of 42U.S.C. § 1983.

78. Following the return of the three Herman children to the Hotel by Plaintiff, the Defendants, including WIEBER and DOE # 1, intentionally and without probable cause or lawful justification, acted in willful and/or reckless disregard of the constitutional right of Plaintiff to be free from false arrest and false imprisonment, and did together and/or in combination with one or more of the other individual Defendants deprive Plaintiff of such constitutional right by placing Plaintiff under arrest without probable cause to do so, take him to the 90th police precinct, where he was searched, fingerprinted, photographed,

interrogated, repeatedly threatened, vulgarly cursed and assaulted by WIEBER, despite knowing ad/or not reasonably believing in the existence of probable cause at the time they arrested Plaintiff.

79. Each of the Defendants, individually, and in concert with the others, acted under color of law in his/their official capacity, to deprive Plaintiff of his rights to freedom from illegal searches and seizure of his person, papers, and effects and his rights to freedom from unlawful arrest, detention and imprisonment. All of the Defendants, while acting individually, jointly, and/or in conspiracy with each other, as well as under color of state law and within the scope of their employment, caused Plaintiff to be so arrested and imprisoned falsely and each was instrumental in the initiation and arrest of Plaintiff. WIEBER and JOHN DOE # 1 acted with malice or reckless indifference to Plaintiff's constitutional rights.

80. The complaint affirmed by WIEBER contained false statements and/or omitted relevant, material and exculpatory facts and no objectively reasonable police officer, under similar circumstances, would have believed that probable cause existed for the crimes charged.

81. The Defendants' conduct as aforesaid also deprived Plaintiff of his rights under the Fifth and Fourteenth Amendments to the Constitution of the United States to liberty without due process of law and to the equal protection of the laws, and the due course of justice was impeded, in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States, all and in violation of 42U.S.C. § 1983.

82. Acting under the color of law, the Defendants' conduct as aforesaid also deprived Plaintiff of his rights privileges or immunities secured by the Fifth and

Fourteenth Amendments to the Constitution of the United States, in violation of 42U.S.C. § 1983, to wit:

- (a) by depriving Plaintiff of his liberty without due process of law, by taking him into custody and holding him there against his will;
- (b) by making an unreasonable search and seizure of his wallet without due process of law;
- (c) by conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Plaintiff equal protection of laws;
- (d) by refusing or neglecting to prevent such deprivations and denials to Plaintiff, thereby depriving Plaintiff of his rights, privileges, and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

83. At no time did the individual Defendants have any information or knowledge that would establish probable cause to believe that JOEL was involved in making a false 911 call on April 22, 2013 or otherwise commit the offense charged. At the time of the above-mentioned arrests and during the time of the subsequent detention of Plaintiff, none of the Defendants had in their possession any warrant issued by a judge, court, or magistrate authorizing the arrest of JOEL, or a search of his wallet and its contents upon his arrest. No warrant had in fact been issued by any court, judge, or magistrate for such arrest and search. The illegal arrests and detentions were unlawful restraints of Plaintiff's physical liberty under circumstances where Plaintiff had a reasonable apprehension that force would be used if he did not submit to the restraints imposed on his physical liberty.

84. Defendant WIEBER further engaged in willful, wanton, malicious, and abusive conduct while falsely arresting and imprisoning Plaintiff under the color of law that deprived Plaintiff of constitutionally protected rights under the Fourth and Fourteenth

Amendments of the United States Constitution. Such abusive conduct was grossly disproportionate to the behavior necessary to arrest Plaintiff in violation of his rights under the Fourteenth Amendment of the United States Constitution.

85. The arrest of Plaintiff without probable cause was designed to, and did, cause specific and serious bodily harm, pain and suffering to the Plaintiff and deprived him of his right to be free from false arrest and false imprisonment, as guaranteed by the Fourth and Fourteenth Amendment to the United States Constitution, and was undertaken pursuant to the policies and practices of the NYPD in its 90th police precinct in the manner described more fully above.

86. As a direct and proximate result of the above-mentioned unconstitutional acts of WIEBER and JOHN DOE #1, while agents, servants, or employees of Defendant CITY OF NEW YORK, the unconstitutional policies, customs and practices of Defendant CITY OF NEW YORK, Plaintiff was deprived of his civil rights through false, arrest, false imprisonment, abusive conduct, humiliation, and mistreatment.

87. Defendants' deliberate actions and failure to act causing and contributing to the Plaintiffs false arrest and false imprisonment violated Plaintiffs civil rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution, for which redress is available under 42 U.S.C. § 1983, for the deprivation of such rights under color of state law.

88. Plaintiff has suffered, and will continue to suffer, damages as a proximate result of the false arrest and imprisonment perpetrated upon him by Defendants including, a deprivation of rights and loss of freedom and reputation. The amount of compensatory damages will be established at trial.

89. As a direct and proximate result of the Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including physical and emotional injury and psychological harm such as mental anguish, distress, humiliation and embarrassment affecting his psychological well-being, some or all of which may be permanent, as well as financial harm incurred including attorneys' fees and other costs associated with his defense in both the criminal case and in the parallel divorce action in New York State Supreme Court.

SECOND COUNT

VIOLATION OF 42 U.S.C. § 1983-FALSE ARREST AND FALSE IMPRISONMENT (ARREST 3) AGAINST ALL DEFENDANTS

90. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

91. Pursuant to the Fourth Amendment to the Federal Constitution, it is clearly established law that an arrest and/or imprisonment is unlawful when not supported by probable cause.

92. On or about May 30, 2013, WIEBER and JOHN and JANE DOE # 7-10, acting under color of law within the meaning of 42 U.S.C. § 1983, and in concert with ROCHEL, GREENBERG, EISNER and TEITELBAUM acting as state actors, caused Plaintiff to be falsely arrested, detained and imprisoned without reasonable suspicion or probable cause, thereby depriving plaintiff of his right to be free from unlawful seizure under the Fourth Amendment to the Constitution of the United States, in violation of 42U.S.C. § 1983.

93. At no time did the individual Defendants have any information or knowledge that would establish probable cause to believe that JOEL had committed the

crimes of custodial interference or criminal contempt in the second degree by picking up the children from school that Friday morning for weekend visitation, in compliance with a standing Supreme Court order, and to which the criminal court's order of protection dated May 27, 2013 had been made expressly subject to..

94. At the time of the above-mentioned arrests and during the time of the subsequent detention of Plaintiff, none of the Defendants had in their possession any warrant issued by a judge, court, or magistrate authorizing the arrest of JOEL, or a search of his wallet and its contents upon his arrest. No warrant had in fact been issued by any court, judge, or magistrate for such arrest and search. The illegal arrests and detentions were unlawful restraints of Plaintiff's physical liberty under circumstances where Plaintiff had a reasonable apprehension that force would be used if he did not submit to the restraints imposed on his physical liberty.

95. Defendant WIEBER further engaged in willful, wanton, malicious, and abusive conduct while falsely arresting and imprisoning Plaintiff under the color of law that deprived Plaintiff of constitutionally protected rights under the Fourth and Fourteenth Amendments of the United States Constitution. Such abusive conduct was grossly disproportionate to the behavior necessary to arrest Plaintiff in violation of his rights under the Fourteenth Amendment of the United States Constitution.

96. The arrest of Plaintiff without probable cause was designed to, and did, cause specific and serious bodily harm, pain and suffering to the Plaintiff and deprived him of his right to be free from false arrest and false imprisonment, as guaranteed by the Fourth and Fourteenth Amendment to the United States Constitution, and was undertaken

pursuant to the policies and practices of the NYPD in its 90th police precinct in the manner described more fully above.

97. As a direct and proximate result of the above-mentioned unconstitutional acts of WIEBER and JOHN and JANE DOES ## 7-10, while agents, servants, or employees of Defendant CITY OF NEW YORK, the unconstitutional policies, customs and practices of Defendant CITY OF NEW YORK, Plaintiff was deprived of his civil rights through false, arrest, false imprisonment, abusive conduct, humiliation, and mistreatment.

98. Defendants' deliberate actions and failure to act causing and contributing to the Plaintiffs false arrest and false imprisonment violated Plaintiffs civil rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution, for which redress is available under 42 U.S.C. § 1983, for the deprivation of such rights under color of state law.

99. Plaintiff has suffered, and will continue to suffer, damages as a proximate result of the false arrest and imprisonment perpetrated upon him by Defendants including, a deprivation of rights and loss of freedom and reputation. The amount of compensatory damages will be established at trial.

100. As a direct and proximate result of the Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including physical and emotional injury and psychological harm such as mental anguish, distress, humiliation and embarrassment affecting his psychological well-being, some or all of which may be permanent, as well as financial harm incurred including attorneys' fees and other costs associated with his defense in both the criminal case and in the parallel divorce action in

New York State Supreme Court.

THIRD COUNT

**VIOLATION OF 42 U.S.C. § 1983-
MALICIOUS PROSECUTION[CRIMINAL CASE ## 1 & 2]
AGAINST ALL DEFENDANTS**

101. Plaintiff repeats each and every allegation contained in the above paragraphs as if set forth at length herein.

102. Defendants, maliciously and without regard for the Plaintiffs liberty and rights, did violate and/or conspire to violate Plaintiffs right to be free from malicious prosecution under the Fourth Amendment to the United States Constitution, made actionable through 42 U.S.C. Section 1983.

103. Defendants initiated two separate malicious prosecutions against Plaintiff on May 27, 2013 and again on May 31, 2013, by falsely charging him with a felony and thirteen other misdemeanor counts, forwarding false information to prosecutors and swearing to two false criminal court complaints.

104. Defendants acted without probable cause to believe that Plaintiff had committed the crimes for which he was accused in the institution of the prosecution or during its continuation. The charges initiated against Plaintiff were without legal or factual justification. Defendants initiated and perpetuated the charges against Plaintiff until their dismissal with malice, with absolute disregard for his rights and liberties and with the specific intent to deprive Plaintiff of his constitutional rights.

105. All of these deprivations were maliciously designed by WIEBER, in concert with the other individual defendants, to intimidate and harass plaintiff, and to defeat, interrupt, hinder, or impede and minimize, to the maximum extent possible, the substantial

and ever increasing visitation rights Plaintiff enjoyed with his children under prior Family Court and Supreme Court orders and his battle for the permanent custody of the three Herman children in Supreme Court.

106. As a minimum, the Defendants well knew that ROCHEL was an inherently unreliable informant as to the plaintiff because of clear animosity by ROCHEL and WIEBER towards Plaintiff due to Plaintiff's status as husband and defendant in the divorce action, as stated above. No facts corroborated ROCHEL's unreliable and false statements, or whether WIEBER had a shred of evidence to suggest that the call to 911 was anything but genuine.

107. The District Attorney was unable to initially make an independent judgment of the probable cause existing in the criminal case against Plaintiff because Defendants presented false evidence with a reckless disregard for the truth that was used to support probable cause. Although there was no basis for the Plaintiffs' arrest, Defendants continued with the prosecutions until they were ultimately dismissed.

108. At no point during the duration of the proceedings against Plaintiff in both cases, did Defendants possess any evidence against Plaintiff establishing probable cause and/or a legal basis that Plaintiff was engaged in the criminal acts complained of. Nevertheless, he was prosecuted for a crime he clearly did not commit.

109. Ultimately, the criminal actions initiated by WIEBER against Plaintiff were dismissed in their entirety, on motion of the district attorney which indicated that Plaintiff was innocent of wrongdoing, and thereby terminated in Plaintiff's favor.

110. The misconduct described in this Count was undertaken pursuant to the policies and practices of the NYPD in its 90th Police Precinct in the manner described more fully above.

111. As a direct and proximate result of Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including physical and emotional injury, mental anguish and pain in connection with the deprivation of his constitutional rights in that, among other things, endured almost three months of legal proceedings, suffered the humiliation, degradation and embarrassment of being publicly prosecuted.

112. As a further direct and proximate result of the misconduct aforesaid, Plaintiff is entitled to compensation for the injury and constitutional harms that the Defendants inflicted upon him, especially the significant reduction and impairment of the quality and amount of visitation time that Plaintiff is allowed to spend with his three children from May 26, 2014 to the present, based on the false arrests and malicious prosecutions New York State Supreme Court has not yet explored at a custody trial.

113. Because Defendants' actions were willful, deceitful and intentionally malicious with a purpose to injure and damage Plaintiff, punitive damages in the sum of \$1,0000,000.00 should be assessed against the Defendants, except the CITY OF NEW YORK, jointly and severally.

FOURTH COUNT

VIOLATION OF 42 U.S.C. § 1985(2) CONSPIRACY TO DEPRIVE PLAINTIFF OF HIS CONSTITUTIONAL RIGHTS AGAINST ALL DEFENDANTS

114. Each of the Paragraphs of this Complaint is incorporated as if restated fully herein.

115. After Plaintiff filed a complaint with ACS against ROCHEL as a result of her conduct during and after the April 21, 2014 park injury to Chaim Herman, the Defendants reached an agreement amongst themselves to retaliate against Plaintiff by framing him for a series of crimes he never committed to thereby deprive Plaintiff of his constitutional rights, all as described in the various Paragraphs of this Complaint.

116. Independently, before and after Plaintiff's three false arrests on May 26, May 30, and May 31, 2014 and the commencement of two related malicious prosecutions on May 27, 2014 and May 31, 2014, each of the individual Defendants further conspired, and continue to conspire, to deprive Plaintiff of his constitutional rights to be free from false arrests, malicious prosecutions and unlawful, warrantless searches and seizures by submitting false information and perjurious depositions to prevent his exoneration of the false charges as described in the various Paragraphs of this Complaint.

117. In this manner, the Defendant Officers, acting in concert with other unknown co-conspirators, including persons who are not members of the NYPD, have conspired by concerted action to accomplish an unlawful purpose by an unlawful means.

118. In furtherance of the conspiracy, each of the coconspirators committed overt acts and was an otherwise willful participant in joint activity. The misconduct described in this Count was undertaken with malice, willfulness, and reckless indifference to the rights of others.

119. As described more fully above, each of the Defendants also conspired and participated in a common design through a concert of action, directly or indirectly, for the purpose of depriving Plaintiff of Equal Protection of the law. In so doing, Defendants took actions in furtherance of this conspiracy, causing injury to Plaintiff.

120. The misconduct described in this Count was undertaken pursuant to the policy and practice of the NYPD in the manner described more fully in preceding paragraphs, and was tacitly ratified by policy-makers for the CITY OF NEW YORK with final policymaking authority.

121. Defendant's conspiratorial conduct, under of color of law and effected through ways and means of an applied city policy, deprived Plaintiff of liberty, property, a fair trial and procedural due processes guaranteed to him by the Fifth, Sixth and Fourteenth Amendments for which each are liable to him under 42 U.S.C. §1983 for damages.

122. As a direct and proximate result of the illicit prior agreement referenced above, Plaintiff's rights were violated, and he suffered financial damages, as well as severe emotional distress and anguish, as is more fully alleged above.

FIFTH COUNT

VIOLATION OF 42 U.S.C. § 1983- UNREASONABLE SEARCH AND SEIZURE OF CREDIT/DEBIT CARDS AGAINST ALL DEFENDANTS

123. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

124. On or about May 26, 2013, WIEBER, acting under color of law within the meaning of 42 U.S.C. § 1983, searched plaintiff's person without probable cause or reasonable suspicion, thereby depriving plaintiff of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States in violation of 42 U.S.C. § 1983. WIEBER, acting under color of law, searched Plaintiff's person and a closed wallet taken from his pocket without his permission, probable cause or a warrant, and without

exigent circumstances. WIEBER, acting under color of law, searched Plaintiff's person and closed wallet taken from his pocket without his permission, probable cause or a warrant, and without exigent circumstances.

125. Specifically, defendant violated Plaintiff's right to be free from unlawful searches. This search was unnecessary and illegal, as there was no reason to believe that Plaintiff was armed or presented any kind of danger or threat. Based on this illegal search WIEBER rearrested plaintiff a second time while in a holding cell at the 90th Police Precinct and added a number of false and baseless charges to the complaint alleging identity theft and larceny with respect to credit cards in plaintiff's wallet belonging to Breindy Rosenberg that he was holding with her permission.

126. WIEBER acted with malice or reckless indifference to Patel's constitutional rights.

127. As a direct and proximate result of the foregoing, Plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty, and was otherwise damaged and injured.

SIXTH COUNT

VIOLATION OF 42 U.S.C. § 1983- MUNICIPAL LIABILITY FOR CONSTITUTIONAL VIOLATIONS

Monell Claim Against the City of New York Only

128. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

129. The CITY OF NEW YORK directly caused the constitutional violations suffered by Plaintiff, and is liable for the damages suffered by Plaintiff as a result of the conduct

of the defendant officers. The conduct of the defendant officers was a direct consequence of policies and practices of Defendant CITY OF NEW YORK.

130. On information and belief, Defendant CITY OF NEW YORK has, acting through the 90th precinct of its NYPD, developed, implemented, enforced, encouraged and sanctioned a de facto policy, practice, and/or custom of unlawfully interfering with and/or arresting, without reasonable suspicion or probable cause, individuals who are targeted by unprincipled or corrupt police officers for reasons other than enforcing the criminal laws of the State of New York.

131. At all times relevant to this complaint Defendant CITY OF NEW YORK, acting through the NYPD, had in effect policies, practices, and customs that condoned and fostered the unconstitutional conduct of the individual defendants, and were a direct and proximate cause of the damages and injuries complained of herein.

132. At all times relevant to this complaint, Defendant CITY OF NEW YORK, acting through the NYPD, and through the individual defendants, had policies, practices, customs, and usages of encouraging and/or tacitly sanctioning the constitutional violations complained of herein. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein. The existence these unconstitutional customs and policies in the 90th police precinct of the NYPD is evidenced by the countless repeated occurrences of similar wrongful conduct over the past year in this and other publicized cases.

133. The widespread practices described in the preceding paragraphs were allowed to take place because the NYPD declined to implement sufficient training and/or any legitimate mechanism for oversight or punishment. Indeed, the NYPD's system for

investigating and disciplining police officers accused of the type of misconduct which befell Plaintiff was, and is, for all practical purposes, nonexistent.

134. NYPD police detectives and officers who manufactured criminal cases against individuals such as Plaintiff had every reason to know that they enjoyed *de facto* immunity from criminal prosecution and/or departmental discipline. In this way, this system proximately caused abuses, such as the misconduct at issue in this case.

135. Upon information and belief, this institutional desire to "solve" crimes more expediently regardless of actual guilt or innocence, in order to enhance police officers' personal standing in the Department, was known to the command personnel, who themselves participated in the practice.

136. The CITY OF NEW YORK knew or should have known of the defendant officers' propensity to engage in misconduct of the type alleged herein. Upon information and belief, prior to May 26, 2014, the CITY OF NEW YORK was aware of several complaints of false arrest by members of the 90th police precinct of NYPD. Despite its knowledge of such incidents of prior misconduct, the CITY OF NEW YORK failed to take remedial action.

137. Additionally, the CITY OF NEW YORK knew or should have known, more specifically of Defendant WIEBER's propensity to engage in false arrests and other police misconduct of the type alleged herein including getting himself involved in assisting ROCHEL in civil proceedings in court and before ACS and other administrative agencies. Despite its knowledge of such incidents of prior misconduct, the CITY OF NEW YORK failed to take remedial action.

138. It was the policy and/or custom of the CITY OF NEW YORK to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the CITY OF NEW YORK, including, but not limited to, the incidents listed above. It was the policy and/or custom of the CITY OF NEW YORK to inadequately train, supervise and discipline its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

139. As a result of the above described policies and customs, police officers of the CITY OF NEW YORK, including the defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

140. The wrongful policies, practices, customs and/or usages complained of herein, demonstrated a deliberate indifference on the part of policymakers of the CITY OF NEW YORK to the constitutional rights of persons within the city, and were the direct and proximate cause of the violations of Plaintiffs' rights alleged herein.

PENDENT STATE LAW CLAIMS

NINTH COUNT

STATE LAW FALSE ARREST AND FALSE IMPRISONMENT AGAINST ALL DEFENDANTS (Arrests 1 & 2)

141. Plaintiff repeats each and every allegation contained in the above paragraphs as if set forth at length herein.

142. Defendants individually and/or jointly and in conspiracy, caused Plaintiff to be falsely arrested and imprisoned without reasonable or probable cause-intentional torts committed in violation of New York state law.

143. The Defendants' false arrest and false imprisonment of Plaintiff occurred on May 26, 2014 when the Defendants commenced their unlawful arrest and interrogation and seizure of Plaintiffs. Defendant violated Plaintiffs' personal liberty by acting in a manner, which had the effect of confining him against his will.

144. As a direct and proximate cause of the Defendants' unlawful actions, Plaintiffs have suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, loss of freedom and reputation, mental anguish, suffering, humiliation and embarrassment.

TENTH COUNT

STATE LAW FALSE ARREST AND FALSE IMPRISONMENT AGAINST ALL DEFENDANTS (Arrest # 3)

145. Plaintiff repeats each and every allegation contained in the above paragraphs as if set forth at length herein.

146. Defendants individually and/or jointly and in conspiracy, caused Plaintiff to be falsely arrested and imprisoned on May 30, 2013 without reasonable or probable cause-intentional torts committed in violation of New York state law. As stated in detail above, ROCHEL, GREENBERG, MANDEL, TEITELBAUM, EISNER & YACOOB played an active role in the false arrest, false imprisonment and prosecution of plaintiff, such as giving advice and encouragement or importuning the authorities to act. Their role in the above was far more than merely seeking police assistance or furnishing

information to law enforcement authorities who are then free to exercise their own judgment as to whether an arrest should be made of plaintiff and criminal charges filed.

147. As a direct and proximate cause of the Defendants' unlawful actions, Plaintiffs have suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, loss of freedom and reputation, mental anguish, suffering, humiliation and embarrassment.

ELEVENTH COUNT
MALICIOUS PROSECUTION
AGAINST ALL DEFENDANTS
State Common Law Claim

148. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

149. By their conduct, as described above, Defendants are liable to Plaintiffs for having committed two malicious prosecutions under the laws of the State of New York- having twice maliciously instigated and in effect commenced criminal proceedings against Plaintiff. As stated in detail above, ROCHEL, GREENBERG, MANDEL, TEITELBAUM, EISNER & YACOOB played an active role in the false arrest, false imprisonment and prosecution of plaintiff, such as giving advice and encouragement or importuning the authorities to act. Their role in the above was far more than merely seeking police assistance or furnishing information to law enforcement authorities who are then free to exercise their own judgment as to whether an arrest should be made of plaintiff and criminal charges filed.

150. Defendant WIEBER, in conspiracy with the other individual defendants, falsely accused Plaintiff of criminal activity and falsely charged Plaintiffs with violations

of the laws of the State of New York that WIEBER knew to be without probable cause, and caused Plaintiff to be improperly subjected to criminal proceedings that were undertaken with malice, willfulness, and reckless indifference to the rights of Plaintiff.

151. Thereafter, Defendants WIEBER, D'ALTO, ROCHEL, GREENBERG and TEITELBAUM made statements to prosecutors with the intent of exerting influence to institute and continue the judicial proceedings. Such statements regarding Plaintiff's alleged culpability were made with knowledge that said statements were false and perjured, and undertaken with malice, willfulness, and reckless indifference to the rights of Plaintiff.

152. These judicial proceedings, which were instituted and continued maliciously as aforesaid, resulting in injury, and all charges were terminated in Plaintiff's favor in a manner not inconsistent with Plaintiff's innocence.

153. Defendant CITY OF NEW YORK, as an employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

154. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained, and continues to sustain, injuries and damages alleged herein .

TWELFTH COUNT
CIVIL CONSPIRACY
AGAINST ALL DEFENDANTS
State Common Law Claim

155. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

156. As described more fully in the preceding paragraphs, Defendants, acting in concert with other known and unknown co-conspirators, conspired by concerted action to accomplish an unlawful purpose by unlawful means.

157. In furtherance of the conspiracy, Defendants committed overt acts and were otherwise willful participants in joint activity.

158. The misconduct described in this Count was undertaken with malice, willfulness, and reckless indifference to the rights of others.

159. All the Defendants (a) had an object to be accomplished; (b) had an agreement on the object or course of action, to wit, to deprive Plaintiff of his right to the equal protection of the laws, specifically, the right to have custody and/or visitation rights to his children allowed; (c) performed one or more unlawful overt acts; and (d) caused Plaintiff damages that were a direct result of those acts.

160. In furtherance of their object, defendants did two or more overt acts against the plaintiffs. Those unlawful overt acts include, but are not limited to, the facts outlined in Count 3, *supra*, conspiracy under section 1985(3). All of the Defendants are liable for their acts.

161. As a proximate result of Defendants' conspiracy, Plaintiff suffered damages, including severe emotional distress and anguish, as is more fully alleged above.

THIRTEENTH COUNT
UNLAWFUL SEARCH & SEIZURE
AGAINST ALL DEFENDANTS
State Common Law Claim

162. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

163. On or about May 26, 2014, WIEBER searched plaintiff's person allegedly for inventory purpose, after he had already been arrested at the Pointe Plaza Hotel, handcuffed and taken to the 90th Police Precinct in handcuffs. No search was conducted incident to the arrest at the hotel.

164. The subsequent search was purportedly done for inventory purposes; indeed, WEIBER placed Plaintiff's belongings in a plastic bag identified as such. However, after WIEBER found a closed wallet in plaintiff's pocket he slipped it into his pocket and went into his office. All this was done in front of the desk sergeant who witnessed the whole search but said nothing.

165. Plaintiff was searched without a warrant and without probable cause or reasonable suspicion. In violation of the New York constitution and established new York law, as interpreted by the court of Appeals.

166. Thereafter, WIEBER confronted plaintiff in the holding room with the cards he had searched and taken from the wallet. Therafter, new charges of identity theft and larceny were added to the Complaint drafted by WIEBER and plaintiff was arrested and booked a second time as a result.

167. The conduct of WIEBER was wanton, malicious, willful, or in bad faith.

168. The City of New York is liable for WIEBER's conduct, as he was acting within the line and scope of his employment.

169. As a direct and proximate result of Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, financial and non-monetary damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

FOURTEENTH COUNT
RESPONDEAT SUPERIOR LIABILITY
OF THE CITY OF NEW YORK FOR STATE LAW VIOLATION
State Common Law Claim

170. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

171. The conduct of the individual Defendants occurred while they were on duty, in and during the course and scope of their duties and functions as NYPD detectives, police officers and supervisors in the NYPD 90th police precinct and while they were acting as agents and employees of the Defendant CITY OF NEW YORK. Defendant CITY OF NEW YORK is therefore vicariously liable to Plaintiff under the common law doctrine of *respondeat superior* as principal for all torts committed by its agents.

FIFTEENTH COUNT
NEGLIGENT SUPERVISION, RETENTION AND TRAINING
State Common Law Claim

172. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

173. Defendant CITY OF NEW YORK negligently trained, retained, and supervised Defendant WIEBER. The acts and conduct of Defendant WIEBER were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

174. As a result of the foregoing, Plaintiff was deprived of his liberty, was subjected to great physical and emotional pain and suffering, and was otherwise damaged and injured.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Defendants:

a. Compensatory damages against all Defendants, joint and severally, for violations of federal rights pursuant to 42 U.S.C. § 1983, in an amount appropriate to the proof adduced at trial, as determined by a jury, to the maximum extent permitted by law;

b. Punitive damages pursuant to 42 U.S.C. § 1983 against all the Defendants, joint and severally, excluding the CITY OF NEW YORK, but including defendant police officers individually and not in their official capacities, in an amount; appropriate to the proof adduced at trial, as determined by a jury, to the maximum extent permitted by law;

c. The convening and empanelling of a jury to consider the merits of each of the counts herein;

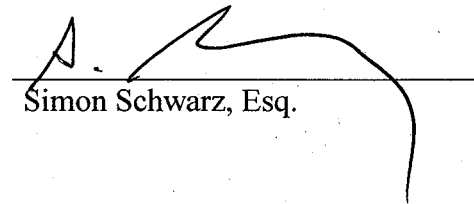
d. An award of reasonable expenses incurred in this litigation, including reasonable attorney and expert fees, pursuant to 42 U.S.C. §1988 (b) and (c), and costs pursuant to 42 U.S.C. § 1920, against all Defendants, joint and severally;

e. Compensatory damages against all defendants, jointly and severally, for violations of state common law rights, in an amount appropriate to the proof adduced at trial, as determined by a jury, to the maximum extent permitted by law; and

f. Such other and further relief as this Court may deem just and proper.

Dated: May 26, 2015
New York, New York

Respectfully submitted,



Simon Schwarz, Esq.

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